fieldfisher | TECH

Am Sandtorkai 68
20457 Hamburg
Germany

www.fieldfisher.com

Our Ref: FTFWI/DR7/DE02-2000559-00001/107486885 v1

Dr. Felix Wittern
Partner
+49 (0) 40 87 88 69 8 221 (Direct Dial)
felix.wittern@fieldfisher-tech.com

28 October 2022

DPO Acknowledgment Letter

To whom it may concern

This letter acknowledges that Fieldfisher Tech Rechtsanwaltsgesellschaft mbH has been appointed and acts as the Data Protection Officer (DPO) for BigCommerce, Inc. (BigCommerce) and each of its affiliates listed below. Fieldfisher is a European law firm with a network that spans more than 1,700 people across 26 international offices in 11 countries. Fieldfisher has substantial expertise in data privacy globally and has acted as the DPO for BigCommerce since 2019. Members of Fieldfisher's team have acted as DPO for more than 20 years and they do so for more than 100 companies.

Section 4 (Articles 37-39) of the GDPR sets forth the qualifications and responsibilities of a DPO. Our duties as DPO include, among others:

- Informing and advising BigCommerce regarding its obligations under GDPR, including changes in applicable EU laws, case law and guidance relevant to data protection and privacy.
- Monitoring BigCommerce's compliance with GDPR, as well as with its own data protection policies, including the assignment of responsibilities, awareness-raising and training of staff involved in processing operations, and any related audits.
- Acting as the contact point for: (i) competent EU data protection authorities and (ii) data subjects who may contact the DPO with regard to all issues related to processing of their personal data and to exercise their rights under GDPR.

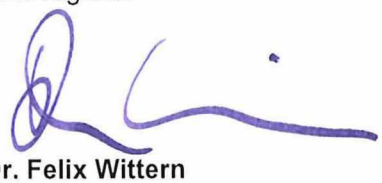
Fieldfisher ist eine geschäftliche Bezeichnung der Anwaltssozietät Fieldfisher Plog Partnerschaft von Rechtsanwälten mbB, die als Partnerschaftsgesellschaft mit beschränkter Berufshaftung unter der Nummer PR 1275 in das Partnerschaftsregister beim Amtsgericht Hamburg eingetragen ist, der Fieldfisher Tech Rechtsanwaltsgesellschaft mbH, die beim Amtsgericht Hamburg unter der Nummer HRB 166177 eingetragen ist (Geschäftsführer: Katharina Weimer, Stephan Zimprich und Thorsten Ihler), und der Fieldfisher LLP, die als Limited Liability Partnership in England und Wales unter der Nummer OC318472 eingetragen ist. Wir verwenden den Begriff Partner für die Mitglieder der genannten Partnerschaften. Der Name Fieldfisher bezeichnet eine internationale Anwaltssozietät, die aus Fieldfisher LLP und ihren verbundenen Sozietäten besteht. Weitere Informationen finden Sie auf unserer Homepage www.fieldfisher.com.

Fieldfisher Tech Rechtsanwaltsgesellschaft mbH
Am Sandtorkai 68
20457 Hamburg
Sitz: Hamburg
Amtsgericht Hamburg, HRB 166177

Geschäftsführer:
Thorsten Ihler, Katharina Weimer, Stephan Zimprich
Gesellschafter:
Dr. Christian Bahr, Thorsten Ihler, Dr. Philipp Plog, Oliver Süme, Katharina Weimer, Dr. Felix Wittern, Stephan Zimprich

We have reviewed BigCommerce's data privacy guidance and framework. To our knowledge, they accurately reflect the law and data privacy practices of BigCommerce.

Kind regards



Dr. Felix Wittern
Rechtsanwalt, Partner
DPO.BigCommerce@fieldfisher.com

BigCommerce & affiliates:

BigCommerce, Inc.

BigCommerce Software Ireland Ltd

BigCommerce UK Ltd

BigCommerce Pty Ltd

BigCommerce Singapore PTE LTD